

AbbVie Inc. v. MSN Pharmaceuticals Inc. et al

Plaintiff:	AbbVie Inc.
Defendant:	MSN Pharmaceuticals Inc. and MSN Laboratories Pvt. Ltd.
Case Number:	1:2026cv00680
Filed:	June 10, 2026
Court:	U.S. District Court for the District of Delaware
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

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Docket Report

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Date Filed	Document Text
June 11, 2026	Filing 6 Summons Issued as to MSN Laboratories Pvt. Ltd. on 6/11/2026; MSN Pharmaceuticals Inc. on 6/11/2026. (Attachments: #1 Summons Issued)(lah)
June 10, 2026	Filing 5 Disclosure Statement pursuant to Rule 7.1: No Parents or Affiliates Listed - filed by AbbVie Inc. (lah)
June 10, 2026	Filing 4 Report to the Commissioner of Patents and Trademarks for Patent/Trademark Number(s) 11,186,584 B2; 12,365,689 B2. (lah)
June 10, 2026	Filing 3 Supplemental information for patent cases involving an Abbreviated New Drug Application (ANDA) - Date Patentee(s) Received Notice: 4/29/2026. Date of Expiration of Patent: 10/17/2036.Thirty Month Stay Deadline: 10/29/2028. (lah)
June 10, 2026	Filing 2 Notice, Consent and Referral forms re: U.S. Magistrate Judge jurisdiction. (lah)
June 10, 2026	Filing 1 COMPLAINT against MSN Laboratories Pvt. Ltd., MSN Pharmaceuticals Inc. (Filing fee \$405, receipt number ADEDC-4989954) - filed by AbbVie Inc. (Attachments: #1 Exhibits A-B, #2 Civil Cover Sheet)(lah)

I. Executive Summary and Procedural Information

Parties & Counsel:

Plaintiff: AbbVie Inc. (Delaware)

Defendant: MSN Pharmaceuticals Inc. (Delaware) and MSN Laboratories Pvt. Ltd. (India)

Plaintiff's Counsel: [Morris, Nichols, Arsht & Tunnell LLP](#)

Case Identification: [1:26-cv-00680](#), D. Del., 06/10/2026

Venue Allegations: Venue is alleged to be proper for MSN Pharmaceuticals Inc. as a Delaware corporation. For MSN Laboratories Pvt. Ltd., an Indian corporation, venue is alleged to be proper as it may be sued in any judicial district. The complaint also notes that Defendants have previously litigated in the District of Delaware without contesting venue.

Core Dispute: Plaintiff alleges that Defendants' Abbreviated New Drug Application (ANDA) to market a generic version of Plaintiff's RINVOQ® LQ oral solution constitutes an act of infringement of two patents covering processes for preparing upadacitinib and its formulations.

Technical Context: The technology relates to Janus kinase (JAK) inhibitors, specifically upadacitinib, used in oral formulations for treating pediatric immune-mediated diseases such as psoriatic arthritis and juvenile idiopathic arthritis.

Key Procedural History: This action was filed under the Hatch-Waxman Act following Defendants' submission of ANDA No. 221518 and a subsequent Paragraph IV certification notice letter to Plaintiff. Plaintiff alleges the action was brought within the 45-day statutory window, triggering a 30-month stay of FDA approval. The complaint also notes a dispute over the terms of confidential access to the ANDA, which Plaintiff alleges were unreasonable.

Case Timeline

Date	Event
2015-10-16	Earliest Priority Date for '584 and '689 Patents
2021-11-30	U.S. Patent No. 11,186,584 Issues
2025-07-22	U.S. Patent No. 12,365,689 Issues
2026-04-27	MSN sends Notice Letter to AbbVie
2026-06-10	Complaint Filed

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 11,186,584 - "Processes for the Preparation of (3S,4R)-3-ethyl-4-(3H-imidazo[1,2-a]pyrrolo[2,3-e]-pyrazin-8-yl)-N-(2,2,2-trifluoroethyl)pyrrolidine-1-carboxamide and solid state forms thereof"

Patent Identification: U.S. Patent No. [11186584](#) ("the '584 Patent"), titled "Processes for the Preparation of (3S,4R)-3-ethyl-4-(3H-imidazo[1,2-a]pyrrolo[2,3-e]-pyrazin-8-yl)-N-(2,2,2-

trifluoroethyl)pyrrolidine-1-carboxamide and solid state forms thereof," issued November 30, 2021. [Compl. ¶32](#) ['584 Patent, cover](#)

The Invention Explained

Problem Addressed: The patent's background section describes the challenges associated with the commercial-scale preparation of the active pharmaceutical ingredient upadacitinib ("Compound 1"). These include finding a solid-state form with acceptable properties (e.g., chemical stability, solubility, manufacturability) and developing a synthesis process that avoids the use of hazardous reagents found in earlier methods ['584 Patent, col. 2:6-30](#)

The Patented Solution: The patent discloses processes for preparing upadacitinib and various solid-state forms of the compound, such as crystalline hydrates, anhydrides, and salts ['584 Patent, abstract](#) These processes and forms are intended to provide an acceptable balance of properties for large-scale manufacturing and pharmaceutical formulation ['584 Patent, col. 2:18-23](#) The manufacturing processes are detailed in process flow diagrams, such as the one for producing amorphous freebase shown in Figure 1A ['584 Patent, FIG. 1A](#)

Technical Importance: Developing a safe, scalable, and reproducible manufacturing process for a drug substance that yields a stable solid form is a critical step in bringing a pharmaceutical product to market. ['584 Patent, col. 2:6-23](#)

Key Claims at a Glance

The complaint alleges infringement of "one or more claims" but does not specify which claims will be asserted [Compl. ¶46](#) Independent claim 1 (a process claim) and independent claim 21 (a composition claim) are representative of the patent's scope.

Independent Claim 1 (Process Claim): A process for preparing Compound 1, comprising the steps of:

- (a) reacting a protected carboxylic acid of formula (I) with trimethylsulfoxonium chloride to form a sulfur ylide of formula (II);
- (b) contacting the compound of formula (II) with LiX and a sulfonic acid to form a halomethyl ketone of formula (III);
- (c) reacting the compound of formula (III) with a pyrazine compound of formula (IV) to produce a compound of formula (V);
- (d) contacting the compound of formula (V) with a perfluoro acid anhydride and an organic base to form a compound of formula (VI);
- (e) deprotecting the compound of formula (VI) to form a salt of the compound of formula (VII); and
- (f) reacting the salt of formula (VII) with 2,2,2-trifluoroethylamine to produce Compound 1.

Independent Claim 21 (Composition Claim): An extended release pharmaceutical composition comprising:

- a solid state form of Compound 1; and
 - from about 10 w/w % to about 35 w/w % of an organic acid selected from tartaric acid, fumaric acid, citric acid, succinic acid, malic acid, and combinations thereof.
- The complaint does not explicitly reserve the right to assert dependent claims, but the allegation against "one or more claims" is broad enough to include them.

U.S. Patent No. 12,365,689 - "Processes for the Preparation of (3S,4R)-3-ethyl-4-(3H-imidazo[1,2-a]pyrrolo[2,3-e]-pyrazin-8-yl)-N-(2,2,2-trifluoroethyl)pyrrolidine-1-carboxamide and solid state forms thereof"

❑ **Patent Identification:** U.S. Patent No. [12365689](#) ("the '689 Patent"), titled "Processes for the Preparation of (3S,4R)-3-ethyl-4-(3H-imidazo[1,2-a]pyrrolo[2,3-e]-pyrazin-8-yl)-N-(2,2,2-trifluoroethyl)pyrrolidine-1-carboxamide and solid state forms thereof," issued July 22, 2025.
Compl. ¶33 '689 Patent, cover

The Invention Explained

❑ **Problem Addressed:** The patent background describes the need for safe and efficacious doses of upadacitinib for pediatric patients, who may have difficulty swallowing solid dosage forms like tablets. This creates a need for a stable, palatable liquid formulation that provides comparable plasma exposure to the doses found to be effective in adults '689 Patent, col. 2:11-34

❑ **The Patented Solution:** The patent discloses stable liquid oral pharmaceutical compositions of upadacitinib. The invention combines the active ingredient with specific excipients, including solubilizers, buffers, preservatives, and sweeteners, to create a solution with a pH that ensures stability and palatability for pediatric administration '689 Patent, abstract '689 Patent, col. 77:43-65

❑ **Technical Importance:** The development of a stable, taste-masked liquid oral formulation is critical for enabling the treatment of pediatric patients with chronic diseases, ensuring accurate dosing and improving patient compliance. '689 Patent, col. 2:28-34

Key Claims at a Glance

❑ The complaint alleges infringement of "one or more claims" but does not specify which claims will be asserted Compl. ¶68 Independent claim 1 is representative of the patent's scope and directly relevant to the accused product.

❑ **Independent Claim 1 (Composition Claim):** A liquid pharmaceutical composition comprising:

- ❑ upadacitinib or a pharmaceutically acceptable salt thereof;
- ❑ a solubilizer; and
- ❑ water;
- ❑ wherein the pH of the composition is in a range from about 2 to about 5.

❑ The complaint's general allegation encompasses the right to assert dependent claims.

III. The Accused Instrumentality

❑ **Product Identification:** The accused instrumentality is Defendants' ANDA Product, identified as ANDA No. 221518, which seeks approval to market a generic version of AbbVie's RINVOQ® LQ 1 mg/mL oral solution Compl. ¶1 Compl. ¶15

❑ **Functionality and Market Context:** The accused product is a 1 mg/mL oral solution of upadacitinib, a Janus kinase (JAK) inhibitor with selectivity for JAK1 Compl. ¶1 Compl. ¶3 It is intended for treating pediatric patients with active psoriatic arthritis or polyarticular juvenile idiopathic arthritis Compl. ¶12 The complaint alleges that Defendants intend to commercially manufacture, market, and sell the ANDA Product throughout the United States upon receiving FDA approval Compl. ¶17

IV. Analysis of Infringement Allegations

The complaint does not contain a claim chart or detailed infringement allegations. The infringement theory is statutory under 35 U.S.C. § 271(e)(2)(A), based on the submission of an ANDA for a product that, if approved and marketed, would allegedly infringe. The analysis below is based on the description of the accused product as a generic version of RINVOQ® LQ. No probative visual evidence provided in complaint.

'584 Patent Infringement Allegations

The complaint provides insufficient detail to construct a meaningful claim chart for the process claims of the '584 Patent. An infringement analysis would require access to Defendants' confidential ANDA to compare their manufacturing process to the claimed steps.

Identified Points of Contention:

Factual Question: The central dispute would be evidentiary: does the process used by MSN to manufacture the upadacitinib active pharmaceutical ingredient for its ANDA product practice every limitation of an asserted process claim in the '584 Patent? This question can only be resolved through discovery of MSN's confidential manufacturing information.

'689 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A liquid pharmaceutical composition comprising upadacitinib or a pharmaceutically acceptable salt thereof	MSN's ANDA product is a 1 mg/mL oral solution containing upadacitinib as the active ingredient.	¶1; ¶3	col. 2:1-5
a solubilizer	The complaint does not specify the excipients in MSN's ANDA product, but as a generic equivalent, it is alleged to contain ¶1 the necessary components, including a solubilizer, to achieve a stable solution.		col. 10:4-11
and water	As an aqueous oral solution, MSN's ANDA product is alleged to contain water as a vehicle. ¶1		col. 9:55-61
wherein the pH of the composition is in a range from about 2 to about 5	The complaint does not specify the pH of MSN's ANDA product, but alleges it is a generic equivalent that infringes the patent. ¶1; ¶68		col. 9:55-61

Identified Points of Contention:

Scope Questions: The infringement analysis will likely focus on claim construction. A primary question for the court may be the proper scope of the term "a solubilizer". The dispute will depend on the specific excipients used in MSN's formulation and whether they fall within the definition of "solubilizer" as construed from the patent's specification.

Technical Questions: A key factual question will be whether the pH of MSN's ANDA product, as disclosed in its confidential application, falls within the claimed range of "about 2 to about 5."

V. Key Claim Terms for Construction

For the '584 Patent

The complaint does not provide sufficient detail for an analysis of key claim terms for the '584 Patent, as infringement of its process claims would turn on a factual comparison of MSN's manufacturing process with the claim language, rather than on the construction of specific terms.

For the '689 Patent

The Term: "a solubilizer" (from Claim 1)

Context and Importance: The identity and function of the excipients in MSN's ANDA product will be central to the infringement analysis. If MSN's formulation uses an excipient that is not explicitly listed as a "solubilizer" in the patent, its classification under this claim term will be a critical point of dispute. Practitioners may focus on this term because it is a functional limitation that is broadly recited in the claim but may be narrowed by the specification.

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation: The patent states that the composition "may comprise one or more solubilizers" and provides a non-exhaustive list of examples, including "a pharmaceutically acceptable acid," "a nonionic surfactant," and others, suggesting the term is intended to be interpreted broadly to cover various agents that increase the solubility of upadacitinib. '689 Patent, col. 10:4-11

Evidence for a Narrower Interpretation: The patent's examples consistently use citric acid as the solubilizer to achieve the desired pH and stability '689 Patent, col. 78:1-12, Table 1 A defendant might argue that the term "solubilizer" should be limited to the types of pharmaceutically acceptable acids disclosed and exemplified, rather than encompassing any substance that might increase solubility.

VI. Other Allegations

Indirect Infringement: The complaint alleges that upon approval, MSN will actively induce and contribute to infringement by marketing and selling the ANDA product with a label that will instruct physicians and patients on its use Compl. ¶71 Compl. ¶82 This is a standard allegation in ANDA litigation, premised on the idea that the approved use of the generic drug will directly infringe method-of-use claims, or that the product itself infringes composition claims.

Willful Infringement: The complaint does not use the word "willful" but alleges that MSN has "actual and constructive notice" of the patents-in-suit and is aware that submitting its ANDA constitutes an act of infringement **Compl. ¶150** **Compl. ¶172** These allegations of pre-suit knowledge via the Orange Book listing and the Paragraph IV notice could be used to support a later claim for enhanced damages under 35 U.S.C. § 284.

VII. Analyst's Conclusion: Key Questions for the Case

1.Evidentiary Process Question: A primary issue for the '584 Patent will be a factual one, answerable only through discovery: does the confidential manufacturing process for upadacitinib detailed in MSN's ANDA No. 221518 practice all steps of an asserted process claim?

2.Claim Construction and Scope: For the '689 Patent, the case will likely turn on a question of **definitional scope:** how will the court construe the term "a solubilizer", and do the specific excipients used in MSN's oral solution fall within that construed scope? The outcome will depend on the details of MSN's formulation, which are not yet public.

3.Procedural and Access Issues: An immediate question for the case, as highlighted in the complaint, is procedural: will the court find that AbbVie's allegations regarding MSN's "unreasonable" offer of confidential access to its ANDA have merit, and how will that impact the early discovery schedule and subsequent litigation conduct?

Case 1:26-cv-00680-UNA Document 1 Filed 06/10/26 Page 1 of 18 PageID #: 1 IN THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF DELAWARE ABBVIE INC., Plaintiff, v. MSN PHARMACEUTICALS INC., and MSN LABORATORIES PVT. LTD., Defendants.))))))))) C.A. No. _____ COMPLAINT Plaintiff AbbVie Inc. ("AbbVie"), by its undersigned attorneys, brings this action against Defendants MSN Pharmaceuticals Inc. and MSN Laboratories Pvt. Ltd. (collectively, "MSN"), and hereby alleges as follows: NATURE OF THE ACTION 1. This is a civil action for patent infringement arising under the patent laws of the United States, 35 U.S.C. § 1, et seq., and in particular under 35 U.S.C. § 271, and the Declaratory Judgment Act, 28 U.S.C. §§ 2201 and 2202. This action arises from MSN's submission of an Abbreviated New Drug Application ("ANDA") to the United States Food and Drug Administration ("FDA") seeking approval to market a generic version of AbbVie's pharmaceutical product RINVOQ® LQ 1 mg/mL oral solution ("MSN's ANDA Product" or the "MSN ANDA Product"), prior to the expiration of United States Patent Nos. 11,186,584 ("the '584 Patent") and 12,365,689 ("the '689 Patent") (collectively, "the Patents-in-Suit"). RINVOQ® LQ RINVOQ® LQ is a ground-breaking oral solution drug for treating pediatric patients two years of age and older with active psoriatic arthritis and patients two years of age and older with active polyarticular juvenile idiopathic arthritis. 2. Case 1:26-cv-00680-UNA Document 1 Filed 06/10/26 Page 2 of 18 PageID #: 2 3. Janus kinases (JAKs), including JAK1, JAK2, JAK3 and Tyrosine kinase 2 (Tyk2), are intracellular enzymes that play a pivotal role in signaling pathways arising

from cytokine or growth factor-receptor interactions on the cellular membrane to influence cellular processes of hematopoiesis and immune cell function. Within the signaling pathway, JAKs phosphorylate and activate signal transducers and activators of transcription (STATs), which modulate intracellular activity including gene expression. RINVOQ® LQ's active ingredient, upadacitinib, modulates the signaling pathway at the point of JAKs, preventing the phosphorylation and activation of STATs. Upadacitinib has surprising selectivity for JAK1. 4. AbbVie's development of RINVOQ® LQ is part of its long legacy of research in immunology and its track record to making life better for patients with immune-mediated diseases. 5. RINVOQ® LQ is currently approved for treatment of (1) pediatric patients 2 years of age and older with active psoriatic arthritis who have had an inadequate response or intolerance to one or more TNF blockers, and (2) patients 2 years of age and older with active polyarticular juvenile idiopathic arthritis who have had an inadequate response or intolerance to one or more TNF blockers. 6. RINVOQ® LQ is an important addition to the treatment landscape for patients with these conditions and provides a treatment option for patients who do not respond well or are intolerant to other therapies. Indeed, RINVOQ® LQ was also the first oral therapy to receive FDA approval for pediatric patients with psoriatic arthritis. RINVOQ® LQ has also received orphan drug exclusivity through April 26, 2031 for treatment of pediatric patients 2 years of age and older with active polyarticular juvenile idiopathic arthritis who have had an inadequate response or intolerance to one or more tumor necrosis factor (TNF) blockers, and for the treatment of pediatric 2 Case 1:26-cv-00680-UNA Document 1 Filed 06/10/26 Page 3 of 18 PageID #: 3 patients 2 years of age and older with active psoriatic arthritis who have had an inadequate response or intolerance to one or more TNF blockers. 7. As a result of the inventive work of the AbbVie scientists responsible for its development, RINVOQ® LQ is available in a 1 mg/mL immediate-release twice daily oral solution, which allows for oral dosing to pediatric patients. THE PARTIES 8. Plaintiff AbbVie is a corporation organized and existing under the laws of the State of Delaware, with its corporate headquarters at 1 North Waukegan Road, North Chicago, Illinois 60064. AbbVie is a global research and development-based biopharmaceutical company committed to developing innovative therapies for some of the world's most complex and critical conditions. AbbVie's mission is to use its expertise, dedicated people, and unique approach to innovation to markedly improve treatments across therapeutic areas. 9. AbbVie is the assignee and owner of the Patents-in-Suit. 10. 11. AbbVie holds NDA No. 218347 for RINVOQ® LQ. On information and belief, Defendant MSN Pharmaceuticals Inc. is a corporation organized and existing under the laws of the State of Delaware, having a principal place of business at 20 Duke Road, Piscataway, NJ, 08854. 12. On information and belief, Defendant MSN Laboratories Pvt. Ltd. is a corporation organized and existing under the laws of India, having a principal place of business at MSN House, Plot No. C-24, Industrial Estate, Sanathnagar, Hyderabad – 500018, Telangana, India. 13. On information and belief, MSN Pharmaceuticals Inc. is a wholly-owned subsidiary of MSN Laboratories Pvt. Ltd. 14. On information and belief, MSN Laboratories Pvt. Ltd. and MSN Pharmaceuticals Inc. collaborate with respect to the development, regulatory approval, marketing, sale, and/or 3 Case 1:26-cv-00680-UNA Document 1 Filed 06/10/26 Page 4 of 18 PageID #: 4 distribution of pharmaceutical products. On further information and belief, MSN Laboratories Pvt. Ltd. and MSN Pharmaceuticals Inc. are agents of one another and/or operate in concert as integrated parts of the same business group and enter into agreements with each other that are nearer than arm's length. 15. On information and belief, MSN caused ANDA No. 221518 ("MSN's ANDA") to be submitted to FDA and seeks FDA approval of MSN's ANDA. 16. On information and belief, MSN Laboratories Pvt. Ltd. and MSN Pharmaceuticals Inc. acted collaboratively in the preparation of

MSN's ANDA and continue to act collaboratively in pursuing FDA approval of MSN's ANDA and seeking to market the MSN ANDA Product. 17. On information and belief, MSN intends to commercially manufacture, market, offer for sale, and sell the MSN ANDA Product throughout the United States, including in the State of Delaware, in the event FDA approves MSN's ANDA. 18. On information and belief, MSN Laboratories Pvt. Ltd. and MSN Pharmaceuticals Inc. rely on material assistance from one another to market, distribute, offer for sale, and/or sell generic drugs in the U.S. market, including in the State of Delaware. On information and belief, MSN Laboratories Pvt. Ltd. and MSN Pharmaceuticals Inc. intend to act collaboratively to commercially manufacture, market, distribute, offer for sale, and/or sell MSN's ANDA Product, in the event FDA approves MSN's ANDA. JURISDICTION AND VENUE 19. This is a civil action for patent infringement arising under the patent laws of the United States, including 35 U.S.C. § 271 and 28 U.S.C. §§ 1338(a), 2201, and 2202. 20. This Court has jurisdiction over the subject matter of this action pursuant to 28 U.S.C. §§ 1331 and 1338. 4 Case 1:26-cv-00680-UNA Document 1 Filed 06/10/26 Page 5 of 18 PageID #: 5 21. This Court has personal jurisdiction over MSN Pharmaceuticals Inc. because, on information and belief, MSN Pharmaceuticals Inc. is a corporation organized and existing under the laws of Delaware. On information and belief, MSN Pharmaceuticals Inc. is registered to do business as a domestic corporation in Delaware (File Number 5454849). 22. Additionally, this Court has personal jurisdiction over MSN Pharmaceuticals Inc. and MSN Laboratories Pvt. Ltd. because, on information and belief, each, inter alia, has continuous and systematic contacts with the State of Delaware, regularly conducts business in the State of Delaware, either directly or through one or more of its wholly owned subsidiaries, agents, and/or alter egos, has purposefully availed itself of the privilege of doing business in the State of Delaware, and intends to sell MSN's ANDA Product in the State of Delaware upon approval of MSN's ANDA. 23. On information and belief, MSN is in the business of manufacturing, marketing, importing, distributing, and selling pharmaceutical drug products, including generic drug products, either directly or through subsidiaries, agents, and/or alter egos, which MSN manufactures, distributes, markets, and/or sells throughout the United States and in this judicial district. 24. On information and belief, MSN is licensed to sell generic and proprietary pharmaceutical products in the State of Delaware, either directly or through one or more of its wholly owned subsidiaries, agents, and/or alter egos. 25. MSN has committed, or aided, abetted, contributed to, and/or participated in the commission of acts of patent infringement that will lead to foreseeable harm and injury to AbbVie, which manufactures and markets RINVOQ® LQ for sale and use throughout the United States, including in this judicial district. On information and belief and as indicated by a letter dated April 27, 2026 sent by MSN to AbbVie pursuant to 21 U.S.C. § 355(j)(2)(B), MSN prepared and filed 5 Case 1:26-cv-00680-UNA Document 1 Filed 06/10/26 Page 6 of 18 PageID #: 6 its ANDA with the intention of seeking to market MSN's ANDA Product nationwide, including within this judicial district. 26. On information and belief, MSN plans to sell the MSN ANDA Product in the State of Delaware, list the MSN ANDA Product on the State of Delaware's prescription drug formulary, and seek Medicaid reimbursements for sales of the MSN ANDA Product in the State of Delaware, either directly or through one or more of its wholly owned subsidiaries, agents, and/or alter egos. 27. On information and belief, MSN knows and intends that the MSN ANDA Product will be distributed and sold in Delaware and will thereby displace sales of RINVOQ® LQ, causing injury to AbbVie. MSN intends to take advantage of its established channels of distribution in Delaware for the sale of the MSN ANDA Product. 28. MSN Pharmaceuticals Inc. and MSN Laboratories Pvt. Ltd. have regularly invoked the jurisdiction of the courts of this judicial district by pleading counterclaims in pharmaceutical patent infringement actions in this judicial district, and they have also not contested

personal jurisdiction or venue in pharmaceutical patent litigation in this judicial district. See, e.g., Bayer HealthCare Pharms. Inc. et al. v. MSN Pharms. Inc. et al., C.A. No. 25-01281, D.I. 16 (D. Del. Jan. 28, 2026); Sumitomo Pharma Switzerland GmbH et al. v. MSN Labs. Private Ltd. et al., C.A. No. 25-345, D.I. 21 (D. Del. May 19, 2025); AbbVie Inc. et al. v. Alkem Labs. Ltd. et al., C.A. No. 22-1423-RGA, D.I. 50 (D. Del. Feb. 15, 2023); Intercept Pharms., Inc. et al. v. MSN Labs. Private Ltd. et al., C.A. No. 20-1214, D.I. 25 (D. Del. Jan. 13, 2021). 29. In the alternative, this Court has personal jurisdiction over MSN Laboratories Pvt. Ltd. because the requirements of Federal Rule of Civil Procedure 4(k)(2)(A) are met as (a) AbbVie's claims arise under federal law; (b) MSN Laboratories Pvt. Ltd. is a foreign defendant not subject to general personal jurisdiction in the courts of any state; and (c) MSN Laboratories 6 Case 1:26-cv-00680-UNA Document 1 Filed 06/10/26 Page 7 of 18 PageID #: 7 Pvt. Ltd. has sufficient contacts in the United States as a whole, including, but not limited to, participating in the preparation and submission of MSN's ANDA and/or manufacturing and/or selling pharmaceutical products distributed throughout the United States including in this judicial district, such that this Court's exercise of jurisdiction over MSN Laboratories Pvt. Ltd. satisfies due process. 30. Venue is proper in this district for MSN Pharmaceuticals Inc. pursuant to 28 U.S.C. § 1400(b) because, inter alia, MSN Pharmaceuticals Inc. is a corporation organized and existing under the laws of the State of Delaware. 31. Venue is proper in this district for MSN Laboratories Pvt. Ltd. pursuant to 28 U.S.C. §§ 1391 and 1400(b) because, inter alia, MSN Laboratories Pvt. Ltd. is a corporation organized and existing under the laws of India and may be sued in any judicial district. THE PATENTS-IN-SUIT 32. The '584 Patent, entitled "Processes for the Preparation of (3S,4R)-3-ethyl-4-(3H-imidazo[1,2-a]pyrrolo[2,3-e]-pyrazin-8-yl)-n-(2,2,2-trifluoroethyl)pyrrolidine-1-carboxamide and solid state forms thereof," was duly and lawfully issued by the United States Patent and Trademark Office ("USPTO") on November 30, 2021. A true and correct copy of the '584 Patent is attached hereto as Exhibit A. The '584 Patent is listed in the Approved Drug Products with Therapeutic Equivalence Evaluations (an FDA publication commonly known as the "Orange Book") for RINVOQ® LQ 1mg/mL oral solution. 33. The '689 Patent, entitled "Processes for the Preparation of (3S,4R)-3-ethyl-4-(3H-imidazo[1,2-a]pyrrolo[2,3-e]-pyrazin-8-yl)-n-(2,2,2-trifluoroethyl)pyrrolidine-1-carboxamide and solid state forms thereof," was duly and lawfully issued by the United States Patent and Trademark Office ("USPTO") on July 22, 2025. A true and correct copy of the '689 Patent is 7 Case 1:26-cv-00680-UNA Document 1 Filed 06/10/26 Page 8 of 18 PageID #: 8 attached hereto as Exhibit B. The '689 Patent is listed in the Orange Book for RINVOQ® LQ 1mg/mL oral solution. MSN'S ANDA NO. 221518 34. MSN has submitted MSN's ANDA, which seeks approval to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of a purported generic version of RINVOQ® LQ 1 mg/mL oral solution prior to the expiration of, inter alia, the '584 and '689 Patents. 35. On information and belief, FDA has not approved MSN's ANDA. 36. MSN sent AbbVie a Notice Letter dated April 27, 2026 ("MSN's Notice Letter"). MSN's Notice Letter represented that MSN had submitted to FDA ANDA No. 221518 and purported Paragraph IV certifications with respect to the '584 Patent and United States Patent Nos. 9,951,080 (the '080 Patent); 10,981,923 (the "'923 Patent"); 11,661,425 (the "'425 Patent"); 11,680,069 (the "'069 Patent"); 11,718,627 (the "'627 Patent"); 11,773,105 (the "'105 Patent"); and 12,110,298 (the "'298 Patent"), which are all listed in the Orange Book for RINVOQ® LQ. MSN's Notice Letter did not address the '689 Patent and two other patents, United States Patents Nos. 8,926,629 and RE47,221, all of which are listed in the Orange Book for RINVOQ® LQ. 37. According to applicable regulations, Notice Letters such as MSN's must contain a detailed statement of the factual and legal basis for the applicant's opinion that the patent

is invalid, unenforceable, or not infringed which includes a claim-by-claim analysis, describing “for each claim of a patent alleged not to be infringed, a full and detailed explanation of why the claim is not infringed” and “for each claim of a patent alleged to be invalid or unenforceable, a full and detailed explanation of the grounds supporting the allegation.” See 21 C.F.R. § 314.95(c)(7); see also 21 C.F.R. § 314.52. 38. In MSN’s Notice Letter, MSN purported to offer confidential access to portions of 8 Case 1:26-cv-00680-UNA Document 1 Filed 06/10/26 Page 9 of 18 PageID #: 9 its ANDA No. 221518 on terms and conditions set forth in MSN’s Notice Letter (“the MSN Offer”). The MSN Offer contained unreasonable restrictions regarding access to its ANDA, well beyond those that would apply under a protective order. For example, the MSN Offer did not permit AbbVie’s in-house counsel or scientific experts to access ANDA No. 221518. Additionally, the MSN Offer contained provisions that unreasonably restricted the ability of outside counsel receiving access to ANDA No. 221518 to engage in any work before or involving FDA relating to upadacitinib oral solutions, upadacitinib, or any analogs, derivatives, or formulations thereof. The restrictions the MSN Offer placed on access to ANDA No. 221518 contravene 21 U.S.C. § 355(j)(5)(C)(i)(III), which states that an offer of confidential access “shall contain such restrictions as to persons entitled to access, and on the use and disposition of any information accessed, as would apply had a protective order been entered for the purpose of protecting trade secrets and other confidential business information” (emphasis added). 39. Outside counsel for AbbVie negotiated in good faith with counsel for MSN in an attempt to reach agreement on reasonable terms of confidential access to MSN’s ANDA. In correspondence dated May 12, 2026, outside counsel for AbbVie proposed edits to the MSN Offer consistent with protective orders AbbVie and MSN have entered into in recent Hatch-Waxman litigation, and consistent with the purpose of 21 U.S.C. § 355(j)(5)(C)(i)(III). See, e.g., AbbVie Inc. et al. v. Alkem Laboratories Limited et al., C.A. No. 1:22-cv-01423-RGA-JLH, D.I. 101 (D. Del. May 12, 2023). There, MSN allowed expert and in-house counsel access to its ANDA and permitted outside counsel receiving access to engage in FDA-related work. See id. 40. Between May 12, 2026 and May 22, 2026, outside counsel for AbbVie and counsel for MSN continued to discuss the conditions of access to MSN’s ANDA. MSN continued to insist on unreasonable terms, including with respect to the ability of AbbVie in-house counsel to access MSN’s ANDA. To date, AbbVie has not received access to MSN’s ANDA.

41.

On information and belief, if FDA approves MSN’s ANDA, MSN will manufacture, offer for sale, or sell its ANDA Product, within the United States, including within the State of Delaware, or will import its ANDA Product into the United States, including the State of Delaware. On information and belief, the manufacture, use, offer for sale, sale, or importation of MSN’s ANDA Product will directly infringe the ’584 Patent and the ’689 Patent, either literally or under the doctrine of equivalents, and MSN will actively induce and/or contribute to the infringement of the ’584 Patent and/or the ’689 Patent, either literally or under the doctrine of equivalents.

42.

This action is being brought within forty-five days of AbbVie’s receipt of MSN’s

Notice Letter. Accordingly, AbbVie is entitled to a stay of FDA approval pursuant to 21 U.S.C. § 355(j)(5)(B)(iii).

COUNT 1 — INFRINGEMENT OF THE '584 PATENT BY MSN

43.

AbbVie restates, realleges, and incorporates by reference the foregoing paragraphs as if fully set forth herein.

44.

On information and belief, MSN has submitted or caused the submission of MSN's ANDA to FDA and thereby seeks FDA approval of MSN's ANDA Product.

45.

AbbVie owns all rights, title, and interest in and to the '584 Patent.

46.

On information and belief, MSN's ANDA Product and/or the use thereof infringes one or more claims of the '584 Patent.

47.

On information and belief, MSN has infringed one or more claims of the '584 Patent under 35 U.S.C. § 271(e)(2)(A) by submitting MSN's ANDA and thereby seeking FDA approval of a purported generic version of RINVOQ® LQ prior to the expiration of the '584 Patent.

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48.

On information and belief, if the MSN ANDA is approved, the MSN ANDA Product will be made, offered for sale, sold, imported, or otherwise distributed in the United States, including in the State of Delaware, by or through MSN and its affiliates, directly infringing the '584 Patent.

49.

On information and belief, importation, manufacture, sale, offer for sale, or use of MSN's ANDA Product by MSN or on its behalf prior to the expiration of the '584 Patent would infringe one or more claims of the '584 Patent under 35 U.S.C. § 271(a), (b), (c), and/or (g).

50.

On information and belief, MSN has actual and constructive notice of the '584 Patent and is aware that the submission of MSN's ANDA with the request for FDA approval prior

to the expiration of the '584 Patent would constitute an act of infringement of the '584 Patent.

51.

On information and belief, AbbVie will be irreparably harmed if MSN is not enjoined from infringing and/or from actively inducing or contributing to the infringement of the '584 Patent. AbbVie does not have an adequate remedy at law, and considering the balance of hardships between AbbVie and MSN, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction.

52.

MSN's Notice Letter lacks any sufficient contention that the '584 Patent is invalid, unenforceable, and/or not infringed by MSN. Any assertion by MSN of invalidity, unenforceability, and/or non-infringement with respect to the '584 Patent renders this case "exceptional" as that term is set forth in 35 U.S.C. § 285 and entitles AbbVie to recovery of its attorneys' fees and such other relief as this Court deems proper.

COUNT 2 — DECLARATORY JUDGMENT OF INFRINGEMENT OF THE '584 PATENT BY MSN

53.

AbbVie restates, realleges, and incorporates by reference the foregoing paragraphs as if fully set forth herein.

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54.

and 2202.

55.

56.

AbbVie's claims also arise under the Declaratory Judgment Act, 28 U.S.C. §§ 2201 AbbVie owns all rights, title, and interest in and to the '584 Patent.

On information and belief, MSN's ANDA Product and/or the use thereof infringes one or more claims of the '584 Patent.

57.

On information and belief, MSN has submitted or caused the submission of the MSN ANDA to FDA and continue to seek FDA approval of the MSN ANDA.

58.

On information and belief, MSN has made, and will continue to make, substantial preparation to import into the United States, and/or to use, offer to sell, and/or sell within the United States the MSN ANDA Product.

59.

On information and belief, if the MSN ANDA is approved, the MSN ANDA Product will be made, offered for sale, sold, imported, or otherwise distributed in the United States, including in the State of Delaware, by or through MSN and its affiliates, directly infringing the '584 Patent.

60.

On information and belief, MSN has actual and constructive notice of the '584 Patent and is aware that the manufacture, use, sale, and/or importation of the MSN ANDA Product prior to the expiration of the '584 Patent will constitute an act of infringement of the '584 Patent.

61.

Unless enjoined by this Court, on information and belief, importation, manufacture, sale, offer for sale, or use of MSN's ANDA Product by MSN or on its behalf prior to the expiration of the '584 Patent would infringe one or more claims of the '584 Patent under 35 U.S.C. § 271(a), (b), (c), and/or (g).

62. As a result of the foregoing facts, there is a real, substantial and continuing justiciable controversy between for the parties hereto as to the infringement of the '584 Patent for

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which this Court may grant declaratory relief consistent with Article III of the United States Constitution.

63.

On information and belief, AbbVie will be irreparably harmed if MSN is not enjoined from infringing and/or from actively inducing or contributing to the infringement of the '584 Patent. AbbVie does not have an adequate remedy at law, and considering the balance of hardships between AbbVie and MSN, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction.

64.

MSN's Notice Letter lacks any sufficient contention that the '584 Patent is invalid, unenforceable, and/or not infringed by MSN. Any assertion by MSN of invalidity,

unenforceability, and/or non-infringement with respect to the '584 Patent renders this case "exceptional" as that term is set forth in 35 U.S.C. § 285 and entitles AbbVie to recovery of its attorneys' fees and such other relief as this Court deems proper.

COUNT 3 — INFRINGEMENT OF THE '689 PATENT BY MSN

65.

AbbVie restates, realleges, and incorporates by reference the foregoing paragraphs as if fully set forth herein.

66.

On information and belief, MSN has submitted or caused the submission of MSN's ANDA to FDA and thereby seeks FDA approval of MSN's ANDA Product.

67.

AbbVie owns all rights, title, and interest in and to the '689 Patent.

68.

On information and belief, MSN's ANDA Product and/or the use thereof infringes one or more claims of the '689 Patent.

69.

On information and belief, MSN has infringed one or more claims of the '689 Patent under 35 U.S.C. § 271(e)(2)(A) by submitting MSN's ANDA and thereby seeking FDA approval of a purported generic version of RINVOQ® LQ prior to the expiration of the '689 Patent.

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70.

On information and belief, if the MSN ANDA is approved, the MSN ANDA Product will be made, offered for sale, sold, imported, or otherwise distributed in the United States, including in the State of Delaware, by or through MSN and its affiliates, and will then be used in a way that is directly infringing the '689 Patent.

71.

On information and belief, upon FDA approval of the MSN ANDA, MSN will actively induce and/or contribute to the infringement of one or more claims of the '689 Patent under 35 U.S.C. § 271(b) and/or (c) by actively and intentionally aiding, abetting, encouraging, participating in, and/or inducing others to perform acts of direct infringement with knowledge of the '689 Patent and knowledge that it is encouraging infringement.

72.

On information and belief, MSN has actual and constructive notice of the '689 Patent and is aware that the submission of MSN's ANDA with the request for FDA approval prior to the expiration of the '689 Patent would constitute an act of infringement of the '689 Patent.

73.

On information and belief, AbbVie will be irreparably harmed if MSN is not enjoined from infringing and/or from actively inducing or contributing to the infringement of the '689 Patent. AbbVie does not have an adequate remedy at law, and considering the balance of hardships between AbbVie and MSN, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction.

74.

MSN's Notice Letter lacks any contention that the '689 Patent is invalid, unenforceable, and/or not infringed by MSN. Any assertion by MSN of invalidity, unenforceability, and/or non-infringement with respect to the '689 Patent renders this case "exceptional" as that term is set forth in 35 U.S.C. § 285 and entitles AbbVie to recovery of its attorneys' fees and such other relief as this Court deems proper.

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COUNT 4 — DECLARATORY JUDGMENT OF INFRINGEMENT OF THE '689
PATENT BY MSN

75.

AbbVie restates, realleges, and incorporates by reference the foregoing paragraphs as if fully set forth herein.

76.

AbbVie's claims also arise under the Declaratory Judgment Act, 28 U.S.C. §§ 2201 and 2202.

77.

78.

AbbVie owns all rights, title, and interest in and to the '689 Patent.

On information and belief, MSN's ANDA Product and/or the use thereof infringes one or more claims of the '689 Patent.

79.

On information and belief, MSN has submitted or caused the submission of the MSN ANDA to FDA and continue to seek FDA approval of the MSN ANDA.

80.

On information and belief, MSN has made, and will continue to make, substantial preparation to import into the United States, and/or to use, offer to sell, and/or sell within the United States the MSN ANDA Product.

81.

On information and belief, if the MSN ANDA is approved, the MSN ANDA Product will be made, offered for sale, sold, imported, or otherwise distributed in the United States, including in the State of Delaware, by or through MSN and its affiliates, and will then be used in a way that is directly infringing the '689 Patent.

82.

Unless enjoined by this Court, on information and belief, upon FDA approval of the MSN ANDA, MSN will actively induce and/or contribute to the infringement of one or more claims of the '689 Patent under 35 U.S.C. § 271(b) and/or (c) by actively and intentionally aiding, abetting, encouraging, participating in, and/or inducing others to perform acts of direct infringement with knowledge of the '689 Patent and knowledge that it is encouraging infringement.

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83.

On information and belief, MSN has actual and constructive notice of the '689 Patent and is aware that the manufacture, use, sale, and/or importation of the MSN ANDA Product prior to the expiration of the '689 Patent will constitute an act of infringement of the '689 Patent.

84. As a result of the foregoing facts, there is a real, substantial and continuing justiciable controversy between for the parties hereto as to the infringement of the '689 Patent for which this Court may grant declaratory relief consistent with Article III of the United States Constitution.

85.

On information and belief, AbbVie will be irreparably harmed if MSN is not enjoined from infringing and/or from actively inducing or contributing to the infringement of the '689 Patent. AbbVie does not have an adequate remedy at law, and considering the balance of

hardships between AbbVie and MSN, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction.

86.

MSN's Notice Letter lacks any contention that the '689 Patent is invalid, unenforceable, and/or not infringed by MSN. Any assertion by MSN of invalidity, unenforceability, and/or non-infringement with respect to the '689 Patent renders this case "exceptional" as that term is set forth in 35 U.S.C. § 285 and entitles AbbVie to recovery of its attorneys' fees and such other relief as this Court deems proper.

REQUEST FOR RELIEF

WHEREFORE, AbbVie respectfully requests the following relief:

(A)

A judgment that MSN has infringed the '584 and '689 Patents under 35 U.S.C. § 271(e)(2)(A);

(B)

A declaratory judgment that under one or more of 35 U.S.C. §§ 271(a), (b), (c), and/or (g), MSN's commercial manufacture, use, offer for sale, or sale in, or importation into the

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United States of the MSN ANDA Product, or inducing or contributing to such conduct, would constitute infringement of one or more claims of the '584 and '689 Patents;

(C)

A judgment and order, pursuant to 35 U.S.C. § 271(e)(4)(A), that the effective date of any FDA approval of MSN's ANDA shall be no earlier than the last expiration date of any of the '584 and '689 Patents, or any later expiration of exclusivity for any of the '584 and '689 Patents, including any extensions or regulatory exclusivities;

(D) A judgment that making, using, selling, offering to sell, or importing MSN's accused ANDA Product, or inducing or contributing to such conduct, would constitute infringement of the '584 and '689 Patents pursuant to 35 U.S.C. §§ 271 (a), (b), (c), and/or (g);

(E)

Entry of a permanent injunction enjoining MSN, its officers, agents, employees, parents, affiliates, and subsidiaries, and all persons and entities acting in concert with MSN or on its behalf from commercially manufacturing, using, offering for sale, or selling its accused ANDA

Product within the United States, or importing its accused ANDA Product into the United States, until the day after the expiration of the '584 and '689 Patents, including any additional exclusivity period applicable to those patents, and from otherwise infringing the claims of the '584 and '689 Patents;

(F)

An award of damages or other relief, pursuant to 35 U.S.C. § 271(e)(4)(C), if MSN engages in the commercial manufacture, use, offer for sale, sale, and/or importation of its accused ANDA Product, or any product that infringes the '584 and '689 Patents, or induces or contributes to such conduct, prior to the expiration of those patents including any additional exclusivity period applicable to those patents;

(G)

A finding that this is an exceptional case, and an award of attorneys' fees in this action pursuant to 35 U.S.C. § 285;

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(H)

(I)

An award to Plaintiffs of their costs and expenses in this action; and

Such other and further relief as the Court deems just and proper.

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